

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1426

BY FINANCE COMMITTEE

AN ACT

RELATING TO FUNDING FOR THE IDAHO TRANSPORTATION DEPARTMENT; APPROPRIATING
ADDITIONAL MONEYS TO THE IDAHO TRANSPORTATION DEPARTMENT FOR FISCAL
YEAR 2027; REDUCING THE APPROPRIATION TO THE IDAHO TRANSPORTATION DE-
PARTMENT FOR FISCAL YEAR 2027; PROVIDING REAPPROPRIATION AUTHORITY
FOR THE CAPITAL FACILITIES PROGRAM; PROVIDING REAPPROPRIATION AUTHOR-
ITY FOR THE AERONAUTICS PROGRAM; PROVIDING REAPPROPRIATION AUTHORITY
FOR THE CONTRACT CONSTRUCTION AND RIGHT-OF-WAY ACQUISITION DIVISION;
PROVIDING AUTHORITY FOR PRIOR PERIOD ADJUSTMENTS; AND DECLARING AN
EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. In addition to any other appropriation provided by law,
there is hereby appropriated to the Idaho Transportation Department the
following amounts to be expended according to the designated programs and
expense classes from the listed funds for the period July 1, 2026, through
June 30, 2027:

	FOR PERSONNEL COSTS	FOR OPERATING EXPENDITURES	FOR CAPITAL OUTLAY	TOTAL
I. TRANSPORTATION SERVICES:				
A. ADMINISTRATION:				
FROM:				
State Highway (Dedicated)				
Fund		\$409,600	\$1,133,200	\$1,542,800
B. CAPITAL FACILITIES:				
FROM:				
State Aeronautics (Dedicated)				
Fund			\$43,000	\$43,000
State Highway (Dedicated)				
Fund			<u>15,500,000</u>	<u>15,500,000</u>
TOTAL			\$15,543,000	\$15,543,000
C. AERONAUTICS:				
FROM:				
State Aeronautics (Dedicated)				
Fund		\$351,600	\$80,900	\$432,500

	FOR PERSONNEL COSTS	FOR OPERATING EXPENDITURES	FOR CAPITAL OUTLAY	TOTAL
State Highway (Dedicated)				
Fund	<u>\$1,500</u>	<u>0</u>	<u>0</u>	<u>1,500</u>
TOTAL	\$1,500	\$351,600	\$80,900	\$434,000
DIVISION TOTAL	\$1,500	\$761,200	\$16,757,100	\$17,519,800
II. MOTOR VEHICLES:				
FROM:				
State Highway (Dedicated)				
Fund		\$378,400	\$422,000	\$800,400
III. HIGHWAY OPERATIONS:				
FROM:				
State Highway (Dedicated)				
Fund		\$3,102,500	\$72,888,200	\$75,990,700
IV. CONTRACT CONSTRUCTION & RIGHT-OF-WAY ACQUISITION:				
FROM:				
State Highway (Dedicated)				
Fund			\$4,255,900	\$4,255,900
State Highway (Federal)				
Fund			<u>292,500</u>	<u>292,500</u>
TOTAL			\$4,548,400	\$4,548,400
GRAND TOTAL	\$1,500	\$4,242,100	\$94,615,700	\$98,859,300

SECTION 2. Notwithstanding any other provision of law to the contrary, there is hereby reduced from the Idaho Transportation Department \$1,500 from the Highway Operations Program for personnel costs from the State Highway (Dedicated) Fund for the period July 1, 2026, through June 30, 2027.

SECTION 3. REAPPROPRIATION AUTHORITY FOR THE CAPITAL FACILITIES PROGRAM. There is hereby reappropriated to the Idaho Transportation Department any unexpended and unencumbered balances appropriated or reappropriated to the Idaho Transportation Department from the State Aeronautics (Dedicated) Fund and the State Highway (Dedicated) Fund in the Capital Facilities Program for fiscal year 2026, to be used for nonrecurring expenditures in the Capital Facilities Program for the period July 1, 2026, through June 30, 2027. The Office of the State Controller shall confirm the reappropriation

1 amount, by fund, expense class, and program, with the Legislative Services
2 Office prior to processing the reappropriation authorized herein.

3 SECTION 4. REAPPROPRIATION AUTHORITY FOR THE AERONAUTICS PROGRAM.
4 There is hereby reappropriated to the Idaho Transportation Department any
5 unexpended and unencumbered balances appropriated or reappropriated to the
6 Idaho Transportation Department from the State Aeronautics (Dedicated)
7 Fund in the Aeronautics Program as trustee and benefit payments for airport
8 development grants for fiscal year 2026, to be used for nonrecurring expen-
9 ditures for airport development grants for the period July 1, 2026, through
10 June 30, 2027. The Office of the State Controller shall confirm the reappro-
11 priation amount, by fund, expense class, and program, with the Legislative
12 Services Office prior to processing the reappropriation authorized herein.

13 SECTION 5. REAPPROPRIATION AUTHORITY FOR THE CONTRACT CONSTRUCTION
14 AND RIGHT-OF-WAY ACQUISITION DIVISION. There is hereby reappropriated to
15 the Idaho Transportation Department any unexpended and unencumbered bal-
16 ances appropriated or reappropriated to the Idaho Transportation Department
17 from the State Highway Fund and the Transportation Expansion and Congestion
18 Mitigation Fund for the Contract Construction and Right-of-Way Acquisition
19 Division for fiscal year 2026, in a total amount not to exceed \$300,000,000
20 from the State Highway Fund and/or the Transportation Expansion and Con-
21 gestion Mitigation Fund, to be used for nonrecurring expenditures for the
22 Contract Construction and Right-of-Way Acquisition Division for the period
23 July 1, 2026, through June 30, 2027. The Office of the State Controller shall
24 confirm the reappropriation amount, by fund, expense class, and program,
25 with the Legislative Services Office prior to processing the reappropria-
26 tion authorized herein.

27 SECTION 6. LEGISLATIVE AUTHORIZATION FOR PRIOR PERIOD ADJUSTMENT. Pur-
28 suant to Section 67-3604, Idaho Code, the Idaho Transportation Department is
29 hereby authorized and the Office of the State Controller shall make the nec-
30 essary prior period adjustments not to exceed \$303,900 from the State High-
31 way (Dedicated) Fund and GARVEE Capital Project Fund for transactions incor-
32 rectly recorded in fiscal years 2020, 2021, and 2022.

33 SECTION 7. An emergency existing therefor, which emergency is hereby
34 declared to exist, this act shall be in full force and effect on and after
35 July 1, 2026.